

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1805
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 33-1413.01, Arizona Revised Statutes, is
3 amended to read:

4 33-1413.01. Utility charges; waste, garbage and rubbish
5 removal charges

6 A. If a landlord charges separately for gas, water or electricity,
7 there shall be a separate meter for every user. For each billing period
8 the cost of the charges for the period shall be separately stated, along
9 with the opening and the closing meter readings and the dates of the meter
10 readings. Each bill shall show the computation of the charge generally in
11 accordance with the serving utility company billing format for individual
12 service supplied through a single service meter.

13 B. If the landlord separately charges for utilities PURSUANT TO
14 SUBSECTION A OF THIS SECTION, the landlord ~~shall not charge more than the~~
15 ~~prevailing basic service single family residential rate charged by the~~
16 ~~serving utility or provider~~ MAY RECOVER THE CHARGES IMPOSED ON THE
17 LANDLORD BY THE UTILITY PROVIDER, PLUS AN ADMINISTRATIVE FEE FOR THE
18 LANDLORD FOR ADMINISTRATIVE COSTS ONLY. THE LANDLORD SHALL NOT IMPOSE ANY
19 ADDITIONAL CHARGES. THE RENTAL AGREEMENT SHALL CONTAIN A DISCLOSURE THAT
20 LISTS THE UTILITY SERVICES THAT ARE CHARGED SEPARATELY AND SHALL SPECIFY
21 THE AMOUNT OF ANY ADMINISTRATIVE FEE THAT IS ASSOCIATED WITH SUBMETERING,
22 WHICH MAY NOT BE MORE THAN \$8.

23 C. For the purpose of regulating mobile home parks as public or
24 consecutive water systems, the state shall not adopt rules pursuant to
25 title 49, chapter 2, article 9, ~~that~~ that are more stringent than authorized
26 by the federal government. Submetering solely to determine the charges
27 for individual water use by park tenants for the purpose of water
28 conservation, without other evidence indicating a transaction subject to
29 regulation under title 49, chapter 2, article 9, shall not be used as a
30 basis for treating any mobile home park as a public or consecutive water
31 system.

32 D. A landlord may charge separately for removal of waste, garbage,
33 rubbish, refuse and trash and for sewer services. Any charges for removal
34 or sewer services may not exceed the prevailing ~~single family~~
35 SINGLE-FAMILY residential charge, fee or rate for these services levied by
36 the political subdivision or provider."

37 Amend title to conform

And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN